

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In re: ARMAND J. HENAULT	}	
License No. 068.0000295	}	Docket Nos. 2016-326
Registration No 097.0000004	}	and 2019-137

Appearances:

Prosecutor: Aaron Kisicki, Esq.

Respondent: Did not appear

Hearing Officer: George K. Belcher

DEFAULT ORDER

The Hearing Officer of the Vermont Board of Allied Mental Health Practitioners held a hearing pursuant to 3 VSA Sec. 129(f) in the above matter on November 12, 2019 at the Office of Professional Regulation in Montpelier, Vermont. Respondent did not attend and was not represented by counsel.

Findings of Fact

1. Respondent is a Licensed Clinical Mental Health Counselor and is therefore subject to the regulatory authority of this Board. 3 V.S.A. §§ 127, 129, 129a, 26 V.S.A. Chapter 62, and the Administrative Rules of the Board of Allied Mental Health Practitioners, and the Rules of the Office of Professional Regulation. The Respondent is also registered as a Non-Licensed and Non-Certified Psychotherapist under Registration Number 097.0000004
2. Charges were filed in this matter on September 12, 2019. The Respondent was sent a Notice of Charges in this matter by certified mail and first class mail to the address of the Respondent which was on file with the Office of Professional Regulation on September 17, 2019. Neither the certified mail notice of charges, nor the ordinary mail notice were returned. A copy of the Specification of Charges is attached to this Default Order.
3. OPR Rule 3.3 requires that an Answer be filed within 20 days of the date on which the notice of charges was mailed by the Director.
4. On October 18, 2019 a notice was sent to the Respondent advising of the hearing before the Board to find a default and advising that, "If you wish to contest the charges you must contact the office immediately at (802) 828-2367 and show good cause for failing to answer the charges against you." This notice was mailed by certified mail and regular mail. The certified mail notice was signed for by Phyllis Girard on October 21, 2019. The regular mail notice was not returned as of the date of the hearing.
5. Respondent has not filed an answer to the charges, nor any communication concerning good cause for failure to answer. The Respondent did not appear at the hearing on

default.

6. Upon consideration of the Prosecution's presentation and taking notice of the OPR file, the Hearing Officer of the Board finds Respondent to be in Default. The allegations contained in the Specification of Charges are therefore treated as the facts on which the Board may issue an order of professional discipline. OPR Rule 3.4, 3 V.S.A. § 809(d), and 3 V.S.A. § 814(c).
7. It is specifically found that in 2012 the Respondent entered into inappropriate contact with a minor patient by giving the patient massages at a swimming pool, seeing the patient outside of the therapeutic relationship, and photographing the patient while the patient was naked. Also in 2012 the Respondent had inappropriate sexual contact with the minor patient. In 2015 and 2016 the Respondent provided alcohol and marijuana to the patient. In May of 2019 the Respondent was convicted of enabling consumption of alcohol by minors, sexual exploitation of children, lewd and lascivious conduct with a child, and contributing to juvenile delinquency, all as set forth in the Specification of Charges.
8. It was the recommendation of the State of Vermont that the Respondent's license be REVOKED in part because of the serious nature of the charges and the requirement that the Respondent be registered as a sex offender.

Conclusions of Law

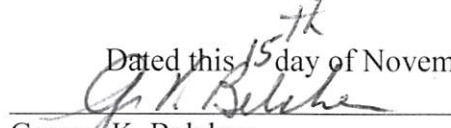
Respondent has received adequate or constructive notice of the charges in this matter as indicated by the Board's file and the Prosecution's presentation. Because Respondent has failed to answer the charges, the factual allegations in the Specification of Charges are treated as if proved. O.P.R. Rule 3.4. Accordingly, the Board finds, based upon the finding of Default from this Default Hearing held pursuant to 3 V.S.A. § 809(d), that Respondent has engaged in the unprofessional conduct alleged in the Specification of Charges. The Respondent committed unprofessional conduct by violating: 3 VSA Sec. 129a(a)(10) [Conviction of a crime related to the practice of the profession]; 26 VSA Sec. 3271(a)(4) & (5) [Engaging in sexual contact with a client]; 26 VSA Sec. 3271(a)(5) and 26 VSA Sec. 4093(a)(6) [Intimidating or abusing a client]; 26 VSA Sec. 3271(a)(3) and Sec. 4093(a)(4) [Showing conduct that evidences unfitness to practice clinical mental health counseling]; 26 VSA Sec. 4093(a)(2) & (4) [Conviction of a crime that evidences unfitness to practice psychotherapy].

Proposed Order

In accordance with the above Findings of Fact and Conclusions of Law, and consistent with the recommendation by the State, the Board does **ORDER** that the Respondent's license be **REVOKED**.

The Hearing Officer reports the above facts, conclusions of law, and the finding of **DEFAULT** to the Board with the recommendation that the Board approve them and enter the Order as above.

Dated this ^{7th} 15 day of November, 2019.


George K. Belcher

Hearing Officer of the Vermont Board of Allied Mental Health Practitioners

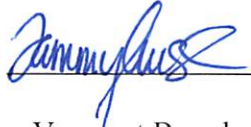
The Vermont co Board of Allied Mental Health Practitioners considered the report of findings of fact and conclusions of law at its meeting on 11-21-19. After considering the report, the Board takes the following action:

- / / Rejects the report and schedules the matter for hearing.
- / / Schedules the matter for additional evidence.
- / / Accepts the report, adopts the findings of fact and conclusions of law, and orders the recommended discipline as set forth in the proposed order above.

SO ORDERED.

Vermont Board of Allied Mental Health Practitioners

By:



Chair

Date: Nov. 21, 2019

Vermont Board of Allied Mental Health Practitioners

OFFICE OF PROFESSIONAL REGULATION

DATE OF ENTRY: 11-22-19

Appeal Rights

This is a final administrative determination by the Vermont Board of Allied Mental Health Practitioners. A party aggrieved by a final decision of a board may appeal this decision by filing a written Notice of Appeal with the Director of the Office of Professional Regulation, Vermont Secretary of State, 89 Main St., Fl. 3, Montpelier, VT 05620-3402 within 30 days of the entry of this Order. If an appeal is filed, the Director of the Office of Professional Regulation shall assign the case to an appellate officer. The review shall be conducted on the basis of the record created before the board. In cases of alleged irregularities in procedure before the board, not shown in the record, proof on that issue may be taken by the appellate officer. 3 V.S.A. §§ 129(d) and 130a.

15-001

Subsequent

RECEIVED
NOV 18 2019
Secretary of State
Professional Regulation

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:	)	
ARMAND J. HENAULT	)	Docket No. 2016-326
	)	
License No. 068.0000295	)	Docket No. 2019- 137
Registration No. 097.0000004	)	

SPECIFICATION OF CHARGES

NOW COMES the State of Vermont and makes the following charges against the respondent, Armand J. Henault:

Authority

1. The Vermont Board of Allied Mental Health Professionals ("Board") is authorized to issue warnings or reprimands, suspend, revoke, limit, condition, deny, or prevent the renewal of licenses if, after disciplinary hearings, it finds that a respondent has engaged in unprofessional conduct. 3 V.S.A. §§ 127, 129(a), 129a, and 814(d); 26 V.S.A. Chapter 62; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Administrative Rules of Practice of the Office of Professional Regulation.

Statement of Facts

2. Armand J. Henault ("Respondent") of Saint Johnsbury, Vermont, is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor ("LCMHC") under license number 068.0000295. The license was first issued on December 19, 1996 and expired on January 31, 2017.
3. Respondent is registered with the State of Vermont as a Non-Licensed and Non-Certified Psychotherapist under registration number 097.0000004. The registration was first issued on November 29, 1994 and expired on November 30, 1998.
4. In or about 2007, Respondent entered into a therapeutic relationship with a minor patient ("Patient 1").
5. In or about March 2012, Patient 1's mother terminated his therapeutic relationship with Respondent after Respondent was criminally investigated for giving Patient 1 massages at a Saint Johnsbury hotel pool.

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6. Respondent continued to see Patient 1 outside of an established therapeutic relationship and provide therapy and/or counseling sessions to Patient 1.
7. In or about June 2012, Respondent photographed Patient 1 naked in his office.
8. In or about July 2012, Respondent penetrated Patient 1's anus with his finger. This event took place again took place in Respondent's office.
9. In or about October 2015, Respondent provided Patient 1 access to alcohol and marijuana at Respondent's home. Patient 1 was a minor at the time. Patient 1 accepted alcohol from Respondent and consumed it at Respondent's home.
10. In or about March 2016, Respondent provided Patient 1 and three other minors access to alcohol at Respondent's home. Patient 1 and the other minors accepted alcohol from Respondent and consumed it at Respondent's home.
11. On or about June 9, 2016, criminal charges were brought against Respondent related to the conduct described in Paragraphs 4 through 10 above.
12. On July 5, 2016, the Board summarily suspended Respondent's LCMHC license.
13. On or about May 3, 2019, Respondent was convicted of one count of misdemeanor enabling consumption of alcoholic beverages by minors, in violation of 7 V.S.A. § 658(a)(2) ("A person shall not knowingly enable the consumption of alcoholic beverages by a person under 21 years of age") ("Alcohol Misdemeanor").
14. On or about May 6, 2019, Respondent was convicted of one count of felony count of sexual exploitation of children; promoting a recording of sexual conduct, in violation of 13 V.S.A. § 2824(a) ("No person may, with knowledge of the character and content, promote any photograph, film, or visual recording of sexual conduct by a child, or of a lewd exhibition of a child's genitals or anus").
15. On or about May 6, 2019, Respondent was convicted of one felony count of lewd or lascivious conduct with a child, in violation of 13 V.S.A. § 2602 ("No person shall willfully and lewdly commit any lewd or lascivious act upon or with the body, or any part or member thereof, of a child under the age of 16 years, with the intent of arousing, appealing to, or gratifying the lust, passions, or sexual desires of such person or of such child").
16. On or about May 6, 2019, Respondent was convicted of one count of misdemeanor contributing to juvenile delinquency, in violation of 13 V.S.A. § 1301 ("A person who causes, encourages, or contributes to the delinquency of a minor shall be imprisoned not more than two years or fined not more than \$2,000.00, or both") ("Delinquency Misdemeanor").

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17. On or about May 17, 2019, the Caledonia County Superior Court ordered Respondent to register as a sex offender.

Violation One: 3 V.S.A. § 129a(a)(10) Conviction of a crime related to the practice of the profession or conviction of a felony, whether or not related to the practice of the profession.

18. The State re-alleges and incorporates Paragraphs 2 through 17 above.
19. Paragraphs 2 through 17 demonstrate that Respondent was convicted of crimes related to the practice of his professions and was convicted of felonies.
20. The Alcohol Misdemeanor and the Delinquency Misdemeanor were crimes related to Respondent's practice as an LCMHC.
21. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent was convicted of a crime related to the practice of his profession or convicted of a felony, in violation of 3 V.S.A. § 129a(a)(10).

Violation Two: 26 V.S.A. § 3271(a)(4) Engaging in any sexual conduct with a client, or with the immediate family member of a client, with whom the licensee has had a professional relationship within the previous five years.

22. The State re-alleges and incorporates Paragraphs 2 through 17 above.
23. Paragraphs 2 through 17 demonstrate that Respondent engaged in sexual conduct with a client with whom he had a professional relationship within the previous five years.
24. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent engaged in sexual conduct with a client, or with an immediate family member of a client, with whom he had a professional relationship within the previous five years, in violation of 26 V.S.A. § 3271(a)(4).

Violation Three: 26 V.S.A. § 3271(a)(5) Harassing, intimidating, or abusing a client.

25. The State re-alleges and incorporates Paragraphs 2 through 17 above.
26. Paragraphs 2 through 17 demonstrate that Respondent harassed, intimidated, or abused a client.
27. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent harassed, intimidated, or abused a client, in violation of 26 V.S.A. § 3271(a)(5).

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Violation Four: 26 V.S.A. § 3271(a)(3) Conduct that evidences unfitness to practice clinical mental health counseling.

- 28. The State re-alleges and incorporates Paragraphs 2 through 17 above.
- 29. Paragraphs 2 through 17 demonstrate that Respondent engaged in conduct that evidences unfitness to practice clinical mental health counseling.
- 30. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent engaged in conduct that evidences unfitness to practice clinical mental health counseling, in violation of 26 V.S.A. § 3271(a)(3).

Violation Five: 26 V.S.A. § 4093(a)(2) Conviction of a crime that evinces an unfitness to practice psychotherapy.

- 31. The State re-alleges and incorporates Paragraphs 2 through 17 above.
- 32. Paragraphs 2 through 17 demonstrate that Respondent was convicted of crimes that evince an unfitness to practice psychotherapy.
- 33. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent was convicted of a crime that evinces an unfitness to practice psychotherapy, in violation of 26 V.S.A. § 4093(a)(2).

Violation Six: 26 V.S.A. § 4093(a)(5) Engaging in any sexual conduct with a client, or with the immediate family member of a client, with whom the psychotherapist has had a professional relationship within the previous two years.

- 34. The State re-alleges and incorporates Paragraphs 2 through 17 above.
- 35. Paragraphs 2 through 17 demonstrate that Respondent engaged in sexual conduct with a client with whom he had a professional relationship within the previous two years.
- 36. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent engaged in sexual conduct with a client, or with an immediate family member of a client, with whom he had a professional relationship within the previous two years, in violation of 26 V.S.A. § 4093(a)(5).

Violation Seven: 26 V.S.A. § 4093(a)(6) Harassing, intimidating, or abusing a client.

- 37. The State re-alleges and incorporates Paragraphs 2 through 17 above.

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38. Paragraphs 2 through 17 demonstrate that Respondent harassed, intimidated, or abused a client.
39. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent harassed, intimidated, or abused a client, in violation of 26 V.S.A. § 4093(a)(6).

Violation Eight: 26 V.S.A. § 4093(a)(4) Conduct that evidences moral unfitness to practice psychotherapy.

40. The State re-alleges and incorporates Paragraphs 2 through 17 above.
41. Paragraphs 2 through 17 demonstrate that Respondent engaged in conduct that evidences moral unfitness to practice clinical psychotherapy.
42. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent engaged in conduct that evidences moral unfitness to practice psychotherapy, in violation of 26 V.S.A. § 4093(a)(4).

Relief Requested

WHEREFORE, Armand J. Henault's license and registration should be revoked, suspended, reprimanded, conditioned, or otherwise disciplined.

DATED at Montpelier, Vermont this 12th day of September, 2019.

STATE OF VERMONT
SECRETARY OF STATE

By: 

Aaron Kisicki
Prosecuting Attorney
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STATE OF VERMONT



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**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In re: ARMAND J. HENAULT
License No. 068.0000295

}
} Docket No. 2016-326
}

**DECISION ON REQUEST FOR
SUMMARY SUSPENSION ORDER**

Members participating:

Tammy Austin, Chair
Jamie Blouin
Michael Doyle, Public Member, *ad hoc*
Joshua Strumpf, *ad hoc*
James Arisman, Esq., Public Member, *ad hoc*

Appearances:

Prosecuting the case: S. Lauren Hibbert, Esq.
Respondent: Not present or represented

Presiding Officer: George K. Belcher

Exhibits introduced and admitted:

State Ex. 1: Affidavit of Police Officer Daniele Kostruba dated June 9, 2016
State Ex. 2: Affidavit of Police Officer Chad Grant dated June 8, 2016

**FINDINGS OF FACT, CONCLUSIONS OF LAW,
AND ORDER**

This matter came before the Board of Allied Mental Health Practitioners on a Request for a Summary Suspension. The hearing was held on June 16, 2016 at the Office of Professional Regulation Conference Room in Montpelier, Vermont. The Respondent did not appear and was not represented. The Board has authority to summarily suspend a license pending further action, if it determines that public health, safety, or welfare imperatively requires emergency action. 3 V.S.A. § 814(c).

Findings of Fact

- (1) Based on a review of the pleadings, and upon the evidence presented at the hearing, the Board finds as follows:
- (2) Respondent is a Licensed Clinical Mental Health Counselor and is therefore subject to the regulatory authority of this Board. 3 V.S.A. §§ 129, 129a, 814(c), and 26 V.S.A. Chapter 65, the Administrative Rules of the Board of Allied Mental Health Practitioners,

and the Rules of the Office of Professional Regulation. 3 V.S.A. § 814(c) permits the Board to summarily suspend a license if it finds that public health, safety, or welfare imperatively requires emergency action, and incorporates a finding to that effect in its order.

- (3) The prosecutor has filed a "Request for Summary Suspension" dated June 12, 2016. A copy of the Request is attached to this Decision and Order. The Request alleges that the Respondent failed to practice competently (3 VSA Sec. 129a(b) (1) and (2)), failed to exercise independent professional judgment in the performance of licensed activities (3 VSA Sec. 129a(a)(15)), failed to comply with provisions of federal or state statutes or rules governing the practice of the profession (3VSA Sec. 129a(a)(3)), exercised undue influence upon, or took advantage of, a person using professional services (3 VSA Sec. 129a(a)(12)), performed conduct which evidences unfitness to practice clinical mental health counseling (26 VSA Sec. 3271(3)), engaged with sexual conduct with a client with whom the Respondent had a professional relationship within the past five years (26 VSA Sec. 3271(4)), and harassed, intimidated or abused a client (26 VSA Sec. 3271(5)). The Request for Summary Suspension further alleges that the public health, safety or welfare imperatively requires emergency summary suspension of the license of the Respondent.
- (4) Notice of this hearing was mailed to the Respondent at the mailing address for the Respondent which is on file with the Board on June 14, 2016. In addition, the prosecuting attorney electronically delivered to the Respondent's attorney in a collateral criminal matter, a copy of the Request for Summary Suspension. This was done before the hearing on June 16, 2016.
- (5) The harm to the public health, safety and welfare in this case include: (1) having a sexual relationship with a client or former client within five years of ending a professional counseling relationship; (2) using the position and trust as a Licensed Clinical Mental Health Counselor for personal sexual purposes; (3) enabling the consumption of alcoholic beverages to a person under the age of 21 with whom the Respondent was or is in a therapeutic relationship; and (4) promotion of any photograph, film or visual recording of sexual conduct by a child, or lewd exhibition of a child's genitals or anus. The alleged facts and the evidence produced at the hearing established to the necessary degree that the behavior of the Respondent, as set forth in the affidavits and Specification of Charges, presents an immediate risk to the public health, safety and welfare. Emergency summary suspension of the Respondent's license is required in order to protect the public.

CONCLUSIONS OF LAW

- (1) The State has the burden of proof to establish that the public health, safety or welfare are at risk and that the proven risk to the public imperatively require emergency action. See 3 VSA Sec. 814(c). The timing, nature, and purpose of the administrative hearing may define the scope and procedural parameters of an administrative hearing. See In re Miller, 2009 VT 112, 989 A.2d 982 (Vt. 2009) at Para. 14. In summary suspension hearings, the administrative authority may look to the allegations, as well as the factual basis for the allegations, to make its findings. Where further hearings are necessary to resolve factual disputes, the Respondent should be afforded the ability to seek a post-summary-suspension review. See In re Dahnad, 201 Ariz. 394, 36 P.3d 742 (2001). The

- Respondent may seek such a review at any time during a summary suspension period.
- (2) In this case the State has adequately established that protection of the public requires summary suspension.
 - (3) The Findings of Fact and Conclusions of Law in this Summary Suspension hearing are for purposes of deciding whether *at this time* there is an imperative need to take emergency action. 3 V.S.A. § 814(c). The Findings of Fact and Conclusions of Law herein are for purposes of this Order only.
 - (4) Vermont law requires that unprofessional charges be filed promptly with Respondent being afforded a prompt hearing. At any merits hearing in this matter, the prosecutor will bear the burden of proving unprofessional conduct. The Findings and Conclusions in this matter will not absolve the prosecution or Respondent from producing or challenging relevant evidence at a merits hearing. The Findings of Fact and Conclusions of Law at a contested hearing will be based exclusively on the evidence admitted at that hearing. This order is subject to motions for reconsideration but shall be effective immediately upon entry.

Order

The Request for Summary Suspension is **Granted**. Respondent's license as a Licensed Clinical Mental Health Counselor is **SUMMARILY SUSPENDED** pending proceedings for revocation or other action. These proceedings shall be promptly instituted and determined. 3 V.S.A. § 814(c).

Board of Allied Mental Health Practitioners

By: 
Tammy Lee Austin, Chair

Date: June 16, 2016

OFFICE OF PROFESSIONAL REGULATION

DATE OF ENTRY: 7/5/16

APPEAL RIGHTS

This is a final administrative determination by the Vermont Board of Allied Mental Health Practitioners. A party aggrieved by a final decision of a board may appeal this decision by filing a written Notice of Appeal with the Director of the Office of Professional Regulation, Vermont Secretary of State, 89 Main Street, Fl. 3, Montpelier, VT 05620-3402 within 30 days of the entry of this order. If an appeal is filed, the Director of the Office of Professional Regulation shall assign the case to an appellate officer. The review shall be conducted on the basis of the record created before the board. In cases of alleged irregularities in procedure before the board, not shown in the record, proof on that issue may be taken by the appellate officer. 3 V.S.A. §§ 129(d) and 130a. To request a stay of the Board's decision, please refer to the attached stay

instructions.

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
ARMAND J. HENAULT) Docket No. 2016-326
License No. 068.0000295)

REQUEST FOR SUMMARY SUSPENSION

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by non-licensed and non-certified psychotherapists pursuant to 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 65; and the Administrative Rules for the Board of Allied Mental Health Practitioners, and the Rules of the Vermont Office of Professional Regulation.
2. The Vermont Board of Allied Mental Health Practitioners is authorized by 3 V.S.A. § 814 to summarily suspend the license of a psychologist when it finds that the public health, safety, or welfare imperatively requires emergency action.

Statement of Facts

3. Armand J. Henault (the "Respondent") of Saint Johnsbury, Vermont is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor under license number 068.0000295. This license was originally issued on or about December 19, 1996 and expires on or about January 31, 2017.
4. At all times relevant, Respondent worked out of his office in Saint Johnsbury, Vermont.
5. On or about June 10, 2016, Respondent was arraigned in Caledonia Criminal Court on three counts of 7 V.S.A. § 658(a)(2) (knowingly enable the consumption of malt or vinous beverages or spirituous liquors by a person under the age of 21). One of the three minors Respondent provided alcohol to is a previous therapeutic client of Respondent.
6. On or about June 10, 2016, Respondent was arraigned in Caledonia Criminal Court on 13 V.S.A. § 3252(c) (No person shall engage in a sexual act with a child who is under the age of 16); 13 V.S.A. § 3252(a)(1) (No person shall engage in a sexual act with another person and compel the other person to participate in a sexual act...without the consent of the other person); and, 13 V.S.A. § 2824 (No person may, with knowledge of the character and content, promote any

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photograph, film, or visual recording of sexual conduct by a child, or of a lewd exhibition of a child's genitals or anus). Respondent's provided therapeutic treatment to the minor related to these allegations.

Request for Relief

7. The facts as set out above establish that in order to protect the public health, safety, or welfare of the people of the State of Vermont, emergency action is imperative.
8. The above acts and circumstances, alone or in combination, violate:
 - a. 26 V.S.A. § 3271(3)(conduct which evidences unfitness to practice clinical mental health counseling)'
 - b. 26 V.S.A. § 3271(4)(Engaging in any sexual conduct with a client, or with the immediate family member of a client, with whom the licensee has a had a professional relationship within the previous five years);
 - c. 26 V.S.A. § 3271(5)(harassing, intimidating, or abusing a client);
 - d. 3 V.S.A. § 129a(a)(12)(Exercising undue influence on or taking improper advantage of a person using professional services, or promoting the sale of services or goods in a manner which exploits a person for the financial gain of the practitioner or a third party);
 - e. 3 V.S.A. § 129a(a)(15) (Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession);
 - f. 3 V.S.A. § 129a(b)(1) and (2) (Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (1) performance of unsafe or unacceptable patient or client care; or (2) failure to conform to the essential standards of acceptable and prevailing practice); and
 - g. 3 V.S.A. § 129a(a)(3) (Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession).

Relief Requested

WHEREFORE, the registration of Armand J. Henault should be revoked, suspended, reprimanded, conditioned, or otherwise disciplined.

DATED at Montpelier, Vermont this 12 day of June, 2016.

STATE OF VERMONT



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STATE OF VERMONT
SECRETARY OF STATE

By. 
S. Lauren Hibbert
State Prosecuting Attorney

STATE OF VERMONT



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